

INTERNATIONAL STUDENT RECRUITMENT SERVICES AGREEMENT

This Agreement is between the following named parties:

Partner School	Durham Cathedral Schools Foundation
Service Provider	British Enrolment Partners (a trading division of IQ Schools Group)
Effective Date	23 rd July 2026
Initial Term	1 Year
Governing Law	England and Wales

IMPORTANT NOTICE

This Agreement is a legally binding contract. The Partner School should seek independent legal advice before signing.

The parties to this Agreement agree as follows:

1. DEFINITIONS AND INTERPRETATION

In this Agreement, the following terms shall have the meanings set out below:

"Agent" means any overseas education agent, counsellor, or representative within the Service Provider's network who introduces or refers prospective students to the Partner School.

"Commission" means the commission payable to the Service Provider in respect of a student's initial enrolment and in respect of each subsequent Academic Term during which the student remains in attendance at the Partner School, in each case calculated in accordance with the Commission Schedule.

"Applicable Law" means all applicable laws, regulations, and regulatory guidance in force from time to time, including but not limited to the UK GDPR, the Data Protection Act 2018, the Children Act 1989, and any guidance issued by the Independent Schools Inspectorate, the British Council, or the UKVI.

"CAS" means a Confirmation of Acceptance for Studies issued by the Partner School as a licensed UKVI student sponsor.

"Commission Schedule" means the schedule of commission rates maintained and issued by the Service Provider from time to time, a copy of the current version which shall apply to this Agreement is set out in Schedule 1.

"Academic Term" means the period of study at the Partner School commencing on the date on which the Partner School's academic term begins (as notified by the Partner School to the Service

Provider from time to time) and ending on the last day of that academic term. For the avoidance of doubt, the first Academic Term of an Enrolled Student is the Academic Term in which that student commences attendance following their initial enrolment.

"Confidential Information" has the meaning given in Clause 10.

"Enrolled Student" means a prospective student who has accepted an unconditional offer from the Partner School, paid the required deposit or initial tuition fee payment, and commenced attendance at the Partner School.

"Lead" means an enquiry, application, or referral in respect of a prospective student which has been registered by the Service Provider in accordance with Clause 7.

"Operation Fee" means the Service Provider's fixed retainer fee, if any, as set out in Schedule 2, which is separate from and in addition to any Commission.

"Pipeline" means all active and prospective student enquiries, applications, and Leads registered by the Service Provider at any given time.

"Protected Period" means the period of 36 Months following termination or expiry of this Agreement.

"School Brand" means the name, logo, crest, trademarks, trade names, and any other branding materials of the Partner School.

"Services" means the international enrolment coordination services described in Clause 2 and Schedule 3.

"UKVI" means UK Visas and Immigration.

2. SCOPE OF SERVICES

2.1 Nature of Services

The Service Provider is engaged by the Partner School as an independent international enrolment coordinator. The Services include but are not limited to the introduction of prospective students to the Partner School and include the coordination, management, and administration activities set out in this Clause 2 and Schedule 3.

2.2 Service Provider Responsibilities

The Service Provider shall provide the following services to the Partner School, whether by itself or vis its Agents:

1. Managing and coordinating enquiries from prospective international students and their families;
2. Liaising with and coordinating the Agents in respect of overseas student recruitment;
3. Facilitating and coordinating family communications, including responding to enquiries and providing information about the Partner School in accordance with approved marketing materials;
4. Coordinating and managing the applications process on behalf of the Partner School, including gathering required documentation;
5. Providing pre-arrival support and guidance to newly enrolled Students and their families, excluding any activities reserved for the Partner School under Clause 3 (which shall include post enrolment student support services);
6. Maintaining the Pipeline and providing regular reporting to the Partner School on recruitment activity, conversion rates, and Agent performance;
7. Engaging with a network of educational agents or educational suppliers and promoting the Partner School in agreed regions.

8. Such other services as the parties may agree in writing from time to time.

2.3 Standard of Service

The Service Provider shall perform the Services with reasonable skill and care, in accordance with Applicable Law, and in a manner consistent with the Partner School's values, ethos, and safeguarding obligations.

3. SCHOOL CONTROL OVER ADMISSIONS AND COMPLIANCE

3.1 Admissions Decisions

Notwithstanding the Services provided by the Service Provider, the Partner School retains sole and absolute discretion and responsibility over all admissions decisions, including without limitation:

1. The making, withdrawal, or amendment of any offer of a place;
2. The award, variation, or withdrawal of any scholarship, bursary, or fee remission;
3. Any decision relating to the suitability of a prospective student for admission.

3.2 Safeguarding

The Partner School retains sole responsibility for all safeguarding decisions relating to prospective and Enrolled Students. The Service Provider shall not make any representations or take any actions that purport to commit the Partner School in respect of safeguarding matters.

3.3 UKVI Sponsor Duties

The Partner School is the licensed UKVI student sponsor and retains exclusive responsibility for all sponsor duties, including without limitation:

1. The decision whether to assign a CAS to any prospective student;
2. All reporting and compliance obligations as a licensed sponsor;
3. Compliance with any UKVI audit or compliance visit.

The Service Provider shall not take any action that could compromise the Partner School's sponsor licence or result in a breach of UKVI requirements.

3.4 Service Provider Compliance

The Service Provider shall at all times:

1. Comply with all Applicable Law in the performance of the Services;
2. Ensure that all Agents within its network have undergone appropriate due diligence and satisfactory references with be sought from other education providers prior to their appointment. Agent information will be supplied to the Partner School to comply with UKVI requirements;
3. Promptly notify the Partner School of any matter that may affect the Partner School's safeguarding obligations, sponsor licence, or regulatory compliance;
4. Co-operate fully with any audit, inspection, or compliance review conducted by the Partner School, UKVI, or any other relevant regulatory body.

4. OPERATION FEE AND COMMISSION

4.1 Operation Fee (Performance Partnership Only)

In consideration of the provision of the Services, the Partner School shall pay the Service Provider the Operation Fee as set out in Schedule 2.

A fixed retainer is payable regardless of the number of students enrolled in any given period, unless otherwise agreed in writing by partner schools that opt for the Fixed Retainer service only. The Fixed Retainer shall be invoiced monthly and is payable within 28 days of the date of invoice. Invoices shall be submitted to **Helene Bergenstjerna / finance@dcسف.urf.uk**.

4.2 Operation Fee Reviews

The Operation Fee, if any, shall be reviewed annually on the 1st September each year. Any increase shall require the written agreement of both parties with not less than 30 days' prior notice.

4.3 Commission — School's Obligation

Commission is payable in respect of each Academic Term during which an Enrolled Student attends the Partner School, in accordance with Clause 4.4. Where Commission is properly due, the Partner School shall pay it directly to the Service Provider. It is the sole responsibility of the Service Provider to then pay the relevant Agent from the funds received. The Partner School shall have no direct liability to any BEP Agent for commission payments. The obligation to pay Commission in respect of each Academic Term is a standalone obligation arising at the start of each Academic Term and is not conditional on any continued performance of Services by the Service Provider in that year.

4.4 Commission Trigger

Commission shall become due and payable in respect of each Academic Term during which an Enrolled Student attends the Partner School, as follows:

- (a) Year 1 Commission: Commission in respect of the first academic term and all subsequent academic terms becomes due and payable on the date the Enrolled Student commences attendance each academic term at the Partner School;
- (b) Continuing Annual Commission: Commission in respect of each subsequent academic term becomes due and payable on the first day of that academic term (being the date on which the Enrolled Student commences attendance for that Academic Term);
- (c) Full Year Basis — Commission for each academic term is calculated on the basis of the tuition and boarding fees payable in respect of that Academic Term. Commission is payable on all fee's received by the school including notice fees. If the school has not received such fees, the agent will not be entitled to a commission. No deduction, claw-back, or reduction of Commission shall be made by reason of a student's early departure during any Academic Term for which Commission has been triggered.
- (d) No Annual Cap: Commission continues to be payable for each Academic Term during which the Enrolled Student remains in attendance at the Partner School, without limit on the number of Academic Terms, subject to Clause 4.7.

4.5 Commission Payment Timescale

The Partner School shall pay Commission to the Service Provider within 28 days of receipt of the Service Provider's invoice for the relevant commission trigger event referred to in Clause 4.4. To facilitate timely payment of Continuing Annual Commission under Clause 4.4(b), the Partner School shall notify the Service Provider in writing no later than 28 days before the start of each new Academic Term of: (i) the names of all Enrolled Students who will be commencing that Academic Term; and (ii) the full terms fees payable in respect of each such student for that Academic Term. The Service Provider shall issue a commission invoice promptly following each trigger event and the Partner School shall pay within 28 days of receipt.

4.6 Late Payment

If the Partner School fails to pay any sum due under this Agreement (including the Operation Fee or any Commission) by its due date, the Service Provider shall be entitled, without prejudice to any other right or remedy, to charge interest on the overdue sum from the due date until payment is made in full, both before and after judgment, at the rate of 8% per annum above the Bank of England base rate from time to time in effect, calculated on a daily basis, in accordance with the Late Payment of Commercial Debts (Interest) Act 1998. If any sum remains overdue for more than 30 days following the due date, the Service Provider may, upon written notice to the Partner School, suspend performance of the Services until payment is received in full, without liability to the Partner School for any resulting delay or loss.

4.7 Commission Schedule

The Commission Schedule may be updated from time to time. The Service Provider shall provide the Partner School with not less than 30 days' written notice of any changes to the Commission Schedule. Any change to the Commission Schedule shall not affect entitlements already accrued in respect of students already in the Pipeline at the date of notification.

4.8 VAT

All fees and commissions stated in this Agreement are exclusive of VAT (or equivalent applicable tax), which shall be payable in addition at the prevailing rate, where applicable.

5. PIPELINE VISIBILITY AND COMMISSION PROTECTION

5.1 Pipeline Access

The Partner School shall provide the Service Provider with reasonable access to information regarding the status of all students in the Pipeline, including application status, offer status, and enrolment status. The Service Provider shall be entitled to confirm student source and commission entitlement in respect of each such student.

5.2 Prospective Student Pipeline & Reporting

The Partner School will have access to reports for the purposes of reviewing the Pipeline. In addition, the parties shall agree further mechanisms for Pipeline visibility, which may include the Partner School allowing reasonable access to their systems and records where appropriate. The Partner School shall ensure that the agreed mechanism is maintained and kept up to date throughout the Term.

5.3 Protection Against Bypassing

5.3.1 The Partner School shall not, directly or indirectly:

1. Contact, negotiate with, or enrol any prospective student who has been introduced to the Partner School by or through the Service Provider or any Agent in the Service Provider's network, without the involvement of the Service Provider, other than in respect of matters reserved to the Partner School under Clause 3;
2. Seek to circumvent the Service Provider's role in order to avoid the payment of the Operation Fee or any Commission;

3. Approach or engage directly with any Agent in the Service Provider's network without the prior written consent of the Service Provider.

5.3.2 If the Partner School breaches any provision of this Clause 5.3, the Partner School shall, without prejudice to any other right or remedy available to the Service Provider, pay to the Service Provider on demand a sum equal to the Commission and Operation Fee that would have been payable to the Service Provider had the relevant student or Agent been processed through the Service Provider in the ordinary course in accordance with this Agreement. The parties agree that this represents a genuine pre-estimate of the loss likely to be suffered by the Service Provider as a result of such a breach.

5.4 Post-Termination Protection

Any Lead registered by the Service Provider prior to the date of termination or expiry of this Agreement (a "**Protected Lead**") shall remain subject to this Agreement for commission and Operation Fee purposes during the Protected Period, whether or not the relevant student enrolls before or after the date of termination. For the avoidance of doubt, if a Protected Lead enrolls as a student during the Protected Period, the Partner School shall remain liable to pay the applicable Commission and any outstanding Operation Fee in accordance with this Agreement.

6. TREATMENT OF EXISTING SCHOOL AGENTS

6.1 Schedule of Existing Agents

The parties shall, prior to the Effective Date, agree and document in Schedule 4 a list of agents with whom the Partner School has an existing direct relationship ("**Existing School Agents**"). The treatment of Existing School Agents in respect of commission and Service Provider involvement shall be as set out in Schedule 4.

6.2 Transition

Where the parties agree that Existing School Agents are to be brought within the Service Provider's coordination structure, the parties shall agree a transition plan. From the date of transition, such agents shall be treated as Agents for the purposes of this Agreement.

6.3 New Agents

6.3.1 Any proposed agent relationship that the Partner School wishes to establish after the Effective Date shall be established through and coordinated by the Service Provider. The Partner School shall not enter into any direct agent agreement with a new agent without the prior written consent of the Service Provider.

6.3.2 If the Partner School breaches this Clause 6.3 by entering into a direct agent agreement with a new agent without the Service Provider's prior written consent, the Partner School shall, without prejudice to any other right or remedy available to the Service Provider, pay to the Service Provider on demand a sum equal to the Operation Fee and Commission that the Service Provider would have earned in respect of students recruited through that agent had the relationship been established and coordinated through the Service Provider in accordance with this Agreement, calculated by reference to the Commission Schedule. The parties agree that this represents a genuine pre-estimate of the loss likely to be suffered by the Service Provider as a result of such a breach.

7. LEAD REGISTRATION AND SOURCE DISPUTES

7.1 Registration Process

The Service Provider shall register each Lead with the Partner School by submitting a Lead Registration Form (in the form set out in Schedule 5) as soon as reasonably practicable following initial contact with the prospective student or their family, and in any event prior to a formal application being submitted.

7.2 Acknowledgement

The Partner School shall promptly acknowledge receipt of each Lead Registration Form and shall confirm whether the Lead has been accepted or whether a prior registration exists. If the Service Provider does not receive any response from the Partner School within 5 days of it receiving a Lead Registration Form, the Service Provider will note that no prior registration exists, and will be entitled to proceed as such, irrespective of whether there was later found to be a prior registration.

7.3 Source Disputes

In the event of a dispute as to the source of a Lead or the entitlement to Commission in respect of a particular student:

1. The parties shall in the first instance seek to resolve the dispute by reference to the Lead Registration Forms and Pipeline records;
2. Where the dispute cannot be resolved by agreement within 20 days, it shall be referred to the dispute resolution procedure set out in Clause 16;
3. The principle of first registration shall apply: the Agent who first registered the Lead with the Partner School through the Service Provider shall be entitled to the commission, unless the parties agree otherwise in writing.

8. DATA OWNERSHIP AND CRM ACCESS

8.1 Student Data

All personal data relating to prospective and Enrolled Students collected or processed in connection with this Agreement shall be known as "**Student Data**". Depending on the stage and nature of the processing, the Service Provider may act as an independent data controller when first collecting Student Data from Agents and families prior to sharing it with the Partner School, and as a data processor on behalf of the Partner School when processing Student Data pursuant to the Partner School's instructions in connection with the Services. Both roles are addressed in Clause 9 and the Data Processing Agreement at Schedule 6.

8.2 Service Provider's Proprietary Data

The Service Provider's Agent network, overseas contacts, market intelligence, recruitment methodologies, Agent relationships, and associated know-how ("**SP Proprietary Data**") are and shall remain the confidential and commercially valuable property of the Service Provider. The Partner School shall have no right to access, use, or retain SP Proprietary Data except to the extent strictly necessary for the performance of this Agreement.

8.3 CRM Access

Any access granted to either party to the other's CRM or data management systems is granted solely for the purposes of this Agreement and shall be subject to the data protection provisions of

Clause 9. Such access shall be revoked promptly upon termination of this Agreement, subject to any data return obligations under Clause 15.

9. DATA PROTECTION

9.1 General Compliance

Each party shall comply with its obligations under the UK GDPR, the Data Protection Act 2018, and any other Applicable Law relating to the processing of personal data in connection with this Agreement.

9.2 Data Controller and Data Processor Roles

The parties acknowledge that the Service Provider operates in a dual capacity in relation to Student Data, as set out in Clauses 9.2A and 9.2B below.

9.2A Service Provider as Independent Data Controller

When the Service Provider collects Student Data from Agents and prospective students or their families prior to submission to the Partner School, or when it processes Student Data for its own internal pipeline management, reporting, and Agent coordination purposes, it acts as an independent data controller. In that capacity the Service Provider shall, without reliance on any instruction from the Partner School:

1. Identify and maintain a lawful basis for each such processing activity under UK GDPR Article 6 (and where applicable Article 9);
2. Provide appropriate privacy information to data subjects (including prospective students and their families) at the point of initial collection in accordance with UK GDPR Articles 13 and 14;
3. Maintain records of processing activities in its capacity as controller in accordance with UK GDPR Article 30;
4. Implement appropriate technical and organisational measures to protect Student Data held in its capacity as controller;
5. Handle data subject rights requests (access, rectification, erasure, portability etc.) relating to processing conducted in its capacity as controller;
6. Comply with all obligations applicable to an independent data controller under UK GDPR and the Data Protection Act 2018.

9.2B Service Provider as Data Processor on Behalf of the Partner School

When the Service Provider processes Student Data on behalf of the Partner School pursuant to the Partner School's instructions in connection with the Services (including sharing Student Data with the Partner School and supporting the Partner School's admissions process), the Partner School is the data controller and the Service Provider is the data processor. In that capacity the Service Provider shall:

1. Process Student Data only on the documented instructions of the Partner School;
2. Ensure that persons authorised to process Student Data are bound by appropriate confidentiality obligations;
3. Implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk;
4. Not engage any sub-processor, other than an Agent, without the prior written consent of the Partner School. The Agents within the Service Provider's network are hereby approved

by the Partner School as authorised sub-processors for the purposes of UK GDPR Article 28(2), provided that the Service Provider shall impose data protection obligations on each such Agent that are no less onerous than those set out in this Clause 9, and shall remain liable to the Partner School for each Agent's acts and omissions in respect of Student Data as if they were its own;

5. Assist the Partner School in meeting its obligations under the UK GDPR, including in respect of data subject rights, data breach notification, and data protection impact assessments;
6. Delete or return all Student Data upon termination of this Agreement, as directed by the Partner School.

9.2C Joint Controller Activities

Where the Service Provider and the Partner School jointly determine the purposes and means of any processing of Student Data (for example, in respect of jointly maintained Pipeline records or shared admissions tracking systems), they shall be considered joint controllers in respect of that processing under UK GDPR Article 26. In such cases the parties shall document their respective responsibilities — including as regards the exercise of data subject rights and the provision of privacy information — either by way of a separate written arrangement or within Schedule 6.

9.3 Children's Data

The parties acknowledge that Student Data will include personal data relating to children and young persons. Both parties shall apply enhanced care and appropriate safeguards when processing such data, and shall comply with all relevant guidance from the ICO and any sector-specific regulatory requirements applicable to independent schools.

9.4 International Data Transfers

The parties acknowledge that Student Data will frequently originate from countries outside the UK and EEA, including the countries in which Agents operate. Each party is individually responsible, in its capacity as independent data controller, for ensuring that any international transfer of Student Data for which it is responsible complies with UK GDPR Chapter V and an applicable transfer mechanism (including a UK International Data Transfer Agreement (IDTA) or equivalent). When acting as data processor, the Service Provider shall not transfer Student Data outside the UK without the prior written authorisation of the Partner School and shall implement any transfer mechanism required by the Partner School. The Service Provider shall ensure that any transfers of Student Data by Agents (as approved sub-processors) are subject to an appropriate transfer mechanism by written contract with each Agent. The parties shall cooperate to put in place all necessary transfer documentation before any such transfer commences.

9.5 Data Processing Agreement

The parties shall enter into a Data Processing Agreement in the form set out in Schedule 6, which forms part of this Agreement.

9.6 Data Breach

Each party shall notify the other without undue delay, and in any event within 48 hours, upon becoming aware of any personal data breach affecting Student Data or any other personal data processed in connection with this Agreement.

10. CONFIDENTIALITY, NON-SOLICITATION AND NON-CIRCUMVENTION

10.1 Confidential Information

"**Confidential Information**" means all information disclosed by one party ("**Disclosing Party**") to the other ("**Receiving Party**") in connection with this Agreement that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. For the avoidance of doubt, SP Proprietary Data constitutes Confidential Information of the Service Provider.

10.2 Confidentiality Obligations

The Receiving Party shall:

1. Keep the Disclosing Party's Confidential Information strictly confidential;
2. Not disclose the Disclosing Party's Confidential Information to any third party without the prior written consent of the Disclosing Party;
3. Use the Disclosing Party's Confidential Information only for the purposes of this Agreement;
4. Apply at least the same degree of care to the Disclosing Party's Confidential Information as it applies to its own confidential information, and in any event no less than reasonable care.

10.3 Non-Solicitation of Staff

During the Term and for a period of 6 months following termination or expiry of this Agreement, neither party shall solicit or attempt to recruit any employee or consultant of the other party who was involved in the delivery of the Services without the prior written consent of the other party.

10.4 Non-Circumvention

The Partner School shall not, during the Term or the Protected Period, directly or indirectly contact, engage, or contract with any Agent introduced to the Partner School by the Service Provider, for the purpose of conducting international student recruitment activities, without the prior written consent of the Service Provider and the payment of such fees as the parties may agree.

11. MARKETING APPROVAL AND USE OF SCHOOL BRAND

11.1 Approval of Marketing Materials

The Service Provider shall not produce, distribute, or publish any marketing or promotional materials that reference the Partner School, use the School Brand, or purport to represent the Partner School, without the prior written approval of the Partner School. The Partner School shall not unreasonably withhold or delay its approval.

11.2 Brand Guidelines

Where the Partner School has brand guidelines or a marketing policy, the Service Provider shall comply with such guidelines in all use of the School Brand. The Partner School shall make its current brand guidelines available to the Service Provider.

11.3 Withdrawal of Approval

The Partner School may withdraw approval for any marketing material at any time by written notice to the Service Provider, and the Service Provider shall immediately cease use of any such material upon receipt of such notice.

11.4 No Implied Endorsement

Nothing in this Agreement shall be construed as granting the Service Provider any right to use the School Brand other than as expressly permitted under this Clause 11. The Service Provider shall not represent itself as an agent of the Partner School for any purpose other than international student recruitment coordination in accordance with this Agreement.

11.5 Intellectual Property in Service Provider Materials

All marketing materials, training materials, recruitment methodologies, reporting templates, processes, and other materials created, developed, or compiled by the Service Provider in the performance of the Services (other than the School Brand and any materials incorporating the School Brand, which remain the property of the Partner School) shall be and remain the sole property of the Service Provider, including all intellectual property rights therein. The Partner School is granted a non-exclusive, royalty-free licence to use such materials solely for the purposes of this Agreement during the Term. Nothing in this Agreement shall transfer ownership of any such materials, or any underlying know-how or methodology, to the Partner School, and the Service Provider may continue to use, adapt, and licence such materials to other clients during and after the Term.

12. LIABILITY AND INDEMNITIES

12.1 Mutual Limitation of Liability

Subject to Clause 12.3, the total aggregate liability of either party to the other under or in connection with this Agreement (whether in contract, tort, misrepresentation, breach of statutory duty, or otherwise) shall not exceed the total fees paid or payable in the 6 months preceding the event giving rise to the claim.

12.2 Exclusion of Indirect Loss

Neither party shall be liable to the other for any indirect, special, or consequential loss or damage, loss of profit, loss of revenue, loss of business, or loss of goodwill arising under or in connection with this Agreement, even if such party has been advised of the possibility of such losses.

12.3 Exceptions

The limitations in Clauses 12.1 and 12.2 shall not apply to:

1. Death or personal injury caused by negligence;
2. Fraud or fraudulent misrepresentation;
3. Any liability that cannot be limited or excluded by law;
4. Any breach of data protection obligations under Clause 9; or
5. Any breach of Clause 8.2 (Service Provider's Proprietary Data) or Clause 10 (Confidentiality, Non-Solicitation and Non-Circumvention).

12.5 Partner School Indemnity

The Partner School shall indemnify and hold harmless the Service Provider against any claims, losses, damages, costs, or expenses (including reasonable legal costs) arising from:

1. Any breach by the Partner School of its obligations under this Agreement;
2. Any wilful misconduct or fraudulent act of the Partner School or its personnel;
3. Any failure by the Partner School to fulfil its UKVI sponsor obligations.

13. TERM AND TERMINATION

13.1 Term

This Agreement shall commence on the Effective Date and shall continue for an initial term of 1 Year ("Initial Term"), unless terminated earlier in accordance with this Clause 13. Following the Initial Term, this Agreement shall automatically renew for successive periods of 1 Year (each a "Renewal Term"), unless either party gives the other not less than 1 month's notice written notice of non-renewal prior to the expiry of the Initial Term or the then-current Renewal Term, as applicable. If no such notice is given by either party, this Agreement shall continue to renew automatically on the same terms for successive Renewal Terms. For the avoidance of doubt, expiry of this Agreement at the end of the Initial Term or any Renewal Term by reason of a party's notice of non-renewal under this Clause 13.1 shall not, of itself, constitute a termination for convenience under Clause 13.2, and the protections in Clauses 5.4 and 14 shall continue to apply in respect of any expiry under this Clause 13.1 in the same manner as upon termination.

13.2 Termination for Convenience

Either party may terminate this Agreement for convenience by giving not less than 1 month's notice written notice to the other party. For the avoidance of doubt, notice of termination for convenience may not be given so as to take effect prior to the date falling 12 months after the Effective Date.

13.2A Fixed Retainer Protection on Early Termination

If the Partner School terminates this Agreement for convenience under Clause 13.2, the Partner School shall, in addition to any sums due under Clause 14, pay to the Service Provider an early termination payment equal to the Fixed Retainer Fee that would otherwise have been payable for the remainder of the notice period referred to in Clause 13.2 and a further period of **3** months thereafter, reflecting the Service Provider's sunk costs in establishing the Pipeline and Agent network for the Partner School. This payment shall be due within 30 days of the effective date of termination and shall not be reduced or set off on account of the Partner School's reduced need for the Services following termination. This Clause 13.2A shall not apply where this Agreement is terminated by the Service Provider for convenience, or by either party for cause under Clause 13.3 or Clause 13.4, or expires by reason of non-renewal under Clause 13.1.

13.3 Termination for Cause

Either party may terminate this Agreement with immediate effect by written notice if the other party:

1. Commits a material breach of this Agreement and (where such breach is capable of remedy) fails to remedy such breach within 14 days of written notice requiring it to do so;
2. Becomes insolvent, is unable to pay its debts as they fall due, or makes any arrangement with creditors;
3. Ceases or threatens to cease to carry on business.

13.4 Termination for Safeguarding or Regulatory Breach

The Service Provider may terminate this Agreement with immediate effect by written notice if the Partner School commits any act or omission that, in the reasonable opinion of the Service Provider, constitutes a safeguarding concern, a breach of UKVI requirements, or a material risk to the Service Provider's regulatory compliance.

14. POST-TERMINATION COMMISSION AND FEE PROTECTION

14.1 Survival of Commission Entitlements

Termination or expiry of this Agreement shall not affect the entitlement of the Service Provider to payment of:

1. Commission in respect of any Protected Lead that results in an enrolment during the Protected Period, including all Commissions payable for each subsequent Academic Term of that student's attendance at the Partner School during and beyond the Protected Period;
2. Any Operation Fee that has accrued but remains unpaid as at the date of termination; and
3. Continuing Annual Commission in respect of each Academic Term commencing after the effective date of termination or expiry during which a student who was an Enrolled Student at that date continues to attend the Partner School. This obligation survives termination or expiry of this Agreement and continues for each Academic Term during which the relevant student remains in attendance, without time limit, regardless of the Protected Period.

14.2 Post-Termination Reporting

Following termination, the Partner School shall continue to provide the Service Provider with termly written reports covering: (a) the status of all Protected Leads during the Protected Period, including details of any enrolments, withdrawals, or deferrals; and (b) the names of all students who were Enrolled Students at the date of termination and who continue to attend the Partner School in subsequent Academic Terms, together with the annual fees payable in respect of each such student, to enable the Service Provider to calculate and invoice Continuing Annual Commission in accordance with Clause 14.1.

14.3 No Deduction Following Termination

The Partner School shall not deduct, set off, or withhold any post-termination commission or fee payment save in respect of any amount validly disputed in accordance with Clause 16, or any amount that the Partner School is entitled to recover from the Service Provider by reason of the Service Provider's breach of this Agreement.

15. HANDOVER OF DATA AND PIPELINE ON EXIT

15.1 Handover Obligations

On or before the date of termination or expiry of this Agreement, the Service Provider shall:

1. Provide the Partner School with a complete and up-to-date copy of the Pipeline, including all contact details, application status, and correspondence records relating to prospective and Enrolled Students;

2. Return or, if directed by the Partner School, securely delete all Student Data in its possession or control;
3. Provide reasonable co-operation and assistance to enable an orderly transition of responsibilities to the Partner School or any replacement service provider.

15.2 Retention of SP Proprietary Data

For the avoidance of doubt, the Service Provider shall not be required to disclose or transfer any SP Proprietary Data (including Agent contact details, market intelligence, or know-how) to the Partner School upon termination.

15.3 Transition Period

The parties shall agree a transition plan to take effect for a period of 30 days following the date of termination ("**Transition Period**"), during which the Service Provider shall provide reasonable transition assistance. The Operation Fee shall continue to be payable during any agreed Transition Period.

16. DISPUTE RESOLUTION

16.1 Escalation

If a dispute arises in connection with this Agreement, the parties shall first attempt to resolve it by escalation to senior representatives of each party. Either party may invoke this procedure by written notice to the other. The parties' senior representatives shall meet (in person or by video conference) within 14 days of such notice and shall attempt in good faith to resolve the dispute.

16.2 Mediation

If the dispute is not resolved within 30 days of the meeting referred to in Clause 16.1, either party may refer the dispute to mediation in accordance with the CEDR Model Mediation Procedure. The costs of mediation shall be shared equally unless otherwise agreed.

16.3 Litigation

Nothing in this Clause 16 shall prevent either party from seeking urgent injunctive relief from a court of competent jurisdiction. If mediation fails, the parties shall be free to commence proceedings in accordance with Clause 17.

17. GENERAL PROVISIONS

17.1 Governing Law

This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

17.2 Jurisdiction

Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this Agreement.

17.3 Entire Agreement

This Agreement, together with its Schedules, constitutes the entire agreement between the parties in relation to its subject matter and supersedes all prior agreements, representations, and understandings between the parties relating to the same subject matter.

17.4 Amendments

No amendment to this Agreement shall be valid unless made in writing and signed by authorised representatives of both parties.

17.5 Waiver

No failure or delay by a party to exercise any right or remedy under this Agreement shall constitute a waiver of that or any other right or remedy.

17.6 Severance

If any provision of this Agreement is found to be invalid or unenforceable, that provision shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions shall continue in full force and effect.

17.7 Independent Contractor

The Service Provider is an independent contractor. Nothing in this Agreement shall create or be deemed to create a partnership, joint venture, agency, employment, or fiduciary relationship between the parties.

17.8 Notices

All notices under this Agreement shall be in writing and delivered by hand, first class post, or email (with read receipt or acknowledgement) to the addresses set out in the signature block below.

17.9 Counterparts

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

SIGNATURES

This Agreement has been entered into on the date stated at the beginning of this Agreement.

**Signed for and on behalf of
PARTNER SCHOOL**

**Signed for and on behalf of
SERVICE PROVIDER**

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Address: _____

Address: _____

Email: _____

Email: _____

SCHEDULE 1
COMMISSION SCHEDULE

The following commission rates apply as at the Effective Date and are subject to revision in accordance with Clause 4.7:

Student Category	Year Group / Entry Point	Commission Rate (%)	Notes
International Boarding Full year & Termly Enrolments	Years 7–13	15%	Commission is payable within 28 days of student enrolment.

Commission is calculated as a percentage of the full annual tuition and boarding fees payable in respect of each Academic Term of the Enrolled Student's attendance, unless otherwise specified above. Commission is payable on the termly tuition & boarding fees. Commission is payable in respect of each Academic Term during which the student is enrolled and commences attendance, not only in respect of the initial year.

SCHEDULE 2
OPERATION FEE (Performance Partnership)

Operation Fee Amount	15% of Tuition & Boarding Fee
Payment Frequency	Per invoice on student enrolment
Payment Timing	Payment per student post enrolment & annually
Annual Review Date	1st September each year
Invoice Address / Email	finance@dcsf.or.uk

SCHEDULE 3

DETAILED SCOPE OF SERVICES

The Service Provider shall provide the following services in accordance with the terms of the Agreement, whether by itself or through its Agents:

1. Enquiry and Agent Coordination

1. Receiving and managing enquiries from prospective international students and their families through all channels;
2. Coordinating the Service Provider's Agent network, including onboarding of new Agents, performance monitoring, and communication, for the benefit of maximising the successful provision of Services to the Partner School;
3. Providing Agents with up-to-date information about the Partner School's programmes, fees, and entry requirements (using Partner School-approved materials only).

2. Application Management

1. Coordinating the collection and submission of application documentation in accordance with the Partner School's requirements;
2. Liaising with the Partner School's admissions team in respect of application progress, additional information requests, and interview arrangements;
3. Maintaining accurate records of all applications and their status within the Pipeline.

3. Family Communication and Support

1. Communicating with prospective students and their families in a professional manner and in accordance with Partner School guidelines;
2. Providing general information about the Partner School and the UK independent school system;
3. Assisting families with the post-offer process, excluding any matters reserved to the Partner School under Clause 3.

4. Pre-Arrival Support

1. Providing guidance to Enrolled Students and their families on pre-arrival requirements;
2. Signposting families to relevant resources relating to travel, accommodation, and settling in (where applicable);
3. Co-ordinating with the Partner School's pastoral team in respect of pre-arrival arrangements, as agreed.

5. Reporting

The Service Provider shall provide the Partner School with written reports covering:

1. Pipeline status and conversion rates;
2. Agent activity and performance;
3. Market intelligence and recruitment trends;
4. Any issues or concerns relevant to the Partner School's admissions or compliance obligations.

SCHEDULE 4
EXISTING SCHOOL AGENTS

The following agents have an existing direct relationship with the Partner School as at the Effective Date. The parties have agreed the treatment of these agents as set out below:

Agent Name	Territory	Treatment	Transition Date (if applicable)
Agent Name	Territory	e.g. Retained direct / To be transitioned	Date

SCHEDULE 5

LEAD REGISTRATION FORM

Date of Registration	[DD Month YYYY]
Student's Full Name	[Student Name]
Date of Birth	[DD Month YYYY]
Nationality	[Nationality]
Country of Residence	[Country]
Proposed Year Group / Entry Point	[e.g. Year 9, September 2025]
Referring Agent (if applicable)	[Agent Name and Country]
Source of Enquiry	[e.g. Education fair / Agent referral / Direct]
Parent / Guardian Contact	[Name, Email, Phone]
Notes / Additional Information	[Any relevant details]
Registered by (Service Provider contact)	[Name and Signature]

SCHEDULE 6

DATA PROCESSING AGREEMENT

This Data Processing Agreement ("**DPA**") forms part of and is incorporated into the International Student Recruitment Services Agreement between the Partner School and the Service Provider. It governs processing by the Service Provider as data processor on behalf of the Partner School (as data controller) as described in Clause 9.2B of the Agreement. Where used in this DPA, "**Controller**" means the Partner School and "**Processor**" means the Service Provider, applying only to Clause 9.2B activities. Processing by the Service Provider as independent controller under Clause 9.2A is outside the scope of this DPA.

1. Subject Matter and Duration

The Processor shall process personal data on behalf of the Controller for the purposes of providing the Services under the Agreement. Processing shall continue for the duration of the Agreement and any agreed Transition Period.

2. Nature and Purpose of Processing

Processing activities include: collection and management of student application data; communication with prospective students and their families; liaison with Agents; maintenance of Pipeline records; pre-arrival coordination.

3. Types of Personal Data

Personal data processed includes: name; date of birth; nationality; passport details; contact information; educational records; financial information (in relation to fees); and such other data as is reasonably necessary for the Services. Data relating to children under 18 will be subject to enhanced safeguards.

4. Categories of Data Subjects

Prospective students, Enrolled Students, and their parents or guardians.

5. Processor Obligations

In its capacity as Processor under this DPA, the Service Provider shall comply with the obligations set out in Clause 9.2B of the Agreement and all Applicable Law. In particular, the Service Provider shall maintain records of processing activities conducted under this DPA, implement appropriate technical and organisational measures, and co-operate with the Controller and any relevant supervisory authority. The Service Provider separately acknowledges that, in its capacity as independent data controller under Clause 9.2A, it bears sole responsibility for all applicable controller obligations under UK GDPR and the Data Protection Act 2018, and the Partner School has no liability in that regard.

6. International Transfers

Where personal data is transferred outside the UK in connection with the Services, such transfers shall be made in accordance with UK GDPR Chapter V. The parties shall enter into a UK International Data Transfer Agreement (IDTA) or equivalent appropriate safeguard prior to any such transfer.

7. Sub-processing

The Agents within the Processor's network are hereby approved by the Controller as authorised sub-processors. Other than such Agents, the Processor shall not engage any sub-processor without the prior written consent of the Controller. In respect of any sub-processor (including an Agent), the Processor shall impose data protection obligations equivalent to those set out in this DPA by written contract, and shall remain fully liable to the Controller for the acts and omissions of any sub-processor as if they were its own.

8. Return or Deletion of Data

On termination of the Agreement, the Processor shall, at the Controller's election, return or securely delete all personal data processed on the Controller's behalf, unless retention is required by Applicable Law.